

CHAPTER 4.

An Act to provide for the protection of the public against dangers arising from the Navigation of Aircraft.

[2nd June 1911.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

Power to prohibit navigation of aircraft over prescribed areas.

1.—(1) A Secretary of State may, for the purpose of protecting the public from danger, from time to time by order prohibit the navigation of aircraft over such areas as may be prescribed in the order, and, if any person navigates an aircraft over any such area in contravention of any such order, he shall be guilty of an offence under this Act, unless he proves that he was compelled to do so by reason of stress of weather or other circumstances over which he had no control.

(2) Any such order may apply either generally to all aircraft or to aircraft of such classes and descriptions only as may be specified in the order, and may prohibit the navigation of aircraft over any such prescribed area either at all times or at such times or on such occasions only as may be specified in the order, and either absolutely or subject to such exceptions or conditions as may be so specified.

Penalties for offences.

2.—(1) If any person is guilty of an offence under this Act, he shall be liable on conviction on indictment or on summary conviction to imprisonment for a term not exceeding six months, or to a fine not exceeding two hundred pounds, or to both such imprisonment and fine.

3 Edw. 7. c. 36.

(2) Any person aggrieved by a summary conviction under this Act may, in England or Ireland, appeal to a court of quarter sessions, and in Scotland in like manner as in the case of a conviction under the Motor Car Act, 1903, as provided by section eighteen of that Act.

Short title.

3. This Act may be cited as the Aerial Navigation Act, 1911.

CHAPTER 5.

An Act to apply a sum out of the Consolidated Fund to the service of the year ending on the thirty-first day of March one thousand nine hundred and twelve.

[29th June 1911.]

Most Gracious Sovereign,

WE, Your Majesty's most dutiful and loyal subjects, the Commons of the United Kingdom of Great Britain and Ireland in Parliament assembled, towards making good the